McHENRY

August 17.

Agreed "to appoint a treasurer by joint Ballot; To constitute tribunals inferior to the supreme court; To make rules concerning captures on land and water;

expunged the next section and inserted

To define and punish piracies and felonies committed on the high seas;

To punish counterfeiting the securities and the current coin of the United States.

Struck out the clause To subdue a rebellion etc.

Debated the difference between a power to declare war, and to make war — amended by substituting declare — adjourned without a question on the clause.

SATURDAY, AUGUST 18, 1787.

JOURNAL

Saturday August 18. 1787.

The following additional powers proposed to be vested in the Legislature of the United States having been submitted to the consideration of the Convention — It was moved and seconded to refer them to the Committee to whom the proceedings of the Convention were referred

which passed in the affirmative

The propositions are as follows

To dispose of the unappropriated lands of the United States

To institute temporary governments for new States arising thereon

To regulate affairs with the Indians as well within as without the limits of the United States

To exercise exclusively Legislative authority at the seat of the general Government, and over a district around the same, not exceeding square miles: the consent of the Legislature of the State or States comprising such district being first obtained

To grant charters of incorporation in cases where the public good may require them, and the authority of a single State may be incompetent

To secure to literary authors their copy rights for a limited time

To establish an University

To encourage, by proper premiums and provisions, the advancement of useful knowledge and discoveries

To authorise the Executive to procure and hold for the use of the United States landed property for the erection of forts, magazines, and other necessary buildings

To fix and permanently establish the seat of Government of

the United-States in which they shall possess the exclusive right of soil and jurisdiction

To establish seminaries for the promotion of literature and the arts and sciences

To grant charters of incorporation

To grant patents for useful inventions

To secure to authors exclusive rights for a certain time

To establish public institutions, rewards and immunities for the promotion of agriculture, commerce, trades, and manufactures.

That Funds which shall be appropriated for payment of public Creditors shall not during the time of such appropriation be diverted or applied to any other purpose — and to prepare a clause or clauses for restraining the Legislature of the United States from establishing a perpetual revenue

To secure the payment of the public debt.

To secure all Creditors, under the new Constitution, from a violation of the public faith. when pledged by the authority of the Legislature

To grant letters of marque and reprisal

To regulate Stages on the post-roads.

It was moved and seconded That a Committee to consist of a Member from each State be appointed to consider the necessity and expediency of the debts of the several States being assumed by the United States

which passed in the affirmative [Ayes — 6; noes — 4; divided — 1.][1]

and a Committee was appointed by ballot of the honorable Mr Langdon, Mr King, Mr Sherman, Mr Livingston, Mr Clymer, Mr Dickinson, Mr Mc Henry, Mr Mason, Mr Williamson, Mr C. C. Pinckney, and Mr Baldwin.

It was moved and seconded to agree to the following resolution, namely

Resolved That this Convention will meet punctually at 10 o'clock every morning (Sundays excepted) and sit till four o'clock in the afternoon, at which time the President shall

[1] Vote 316, Detail of Ayes and Noes, which notes that it was "Mr. Rutledge's proposition".

adjourn the Convention and that no motion for adjournment be allowed.

which passed in the affirmative [Ayes — 9; noes — 2.]

It was moved and seconded to insert the words "and support" between the word "raise" and the word "armies" in the 14. clause, 1 sect, 7 article

which passed in the affirmative

It was moved and seconded to strike out the words "build and equip" and to insert the words "provide and maintain" in the 15 clause, 1 sect. 7 article

which passed in the affirmative

It was moved and seconded to insert the following as a 16th clause, in the 1 sect. of the 7. article

"To make rules for the government and regulation of the land and naval forces"

which passed in the affirmative

It was moved and seconded to annex the following proviso to the last clause

"provided that in time of peace the army shall not consist "of more than thousand men"

which passed[2] in the negative.

It was moved and seconded to insert the following as a clause in the 1 sect. of the 7 article

"to make laws for regulating and disciplining the militia "of the several States, reserving to the several States the "appointment of their militia Officers"

It was moved and seconded to postpone the last clause in order to take up the following

"To establish an uniformity of exercise and arms for the "militia — and rules for their government when called into "service under the authority of the United States: and to "establish and regulate a militia in any State where it's Legis- "lature shall neglect to do it"

It was moved and seconded to refer the last two motions to a Committee

which passed in the affirmative

[2] Crossed out "nem con".

and they were referred to the Committee of eleven. [Ayes — 8; noes — 2; divided — 1.]

And then the House adjourned till monday next at 10 o'clock A. M.

DETAIL OF AYES AND NOES.

	New Hampshire	Massachusetts	Rhode Island	Connecticut	New York	New Jersey	Pennsylvania	Delaware	Maryland	Virginia	No Carolina	So Carolina	Georgia	Questions	ayes	noes	divided
[316]	no	aye		aye		no	dd	no	no	aye	aye	aye	aye	To refer Mr Rutledge's proposition respecting the public debt to a Committee of a Member from each State	6	4	1
[317]	aye	aye		aye		aye	no	aye	no	aye	aye	aye	aye	To meet at 10 o'clock to adjourn at 4.	9	2	
[318]	aye	aye		no		no	aye	aye	dd	aye	aye	aye	aye	To commit the two motions respectg militia to the Committee of 11.	8	2	1

MADISON

Saturday August 18. in Convention

⟨Mr- Madison[3] submitted in order to be referred to the Committee of detail the following powers as proper to be added to those of the General Legislature

"To dispose of the unappropriated lands of the U. States"

"To institute temporary Governments for New States arising therein"

"To regulate affairs with the Indians as well within as without the limits of the U. States

[3] Madison's original record stood. — "Mr. Pinkney proposed for consideration several additional powers which had occurred to him. Mr. M. proposed the following, to be referred to a committee." Then follow ten numbered powers. This was all stricken out and the record as here given taken from the printed Journal. Madison's original list corresponds with this, except: in the 2d he had "thereon" instead of "therein" (the Journal also has "thereon"); in the 4th he had "comprehending" instead of "comprising"; and there was one in addition, — "7 To secure to the inventors of useful machines and implements the benefits thereof for a limited time."

"To exercise exclusively Legislative authority at the seat of the General Government, and over a district around the same not, exceeding square miles; the Consent of the Legislature of the State or States comprising the same, being first obtained"

"To grant charters of incorporation in cases where the Public good may require them, and the authority of a single State may be incompetent"

"To secure to literary authors their copyrights for a limited time"

"To establish an University"

"To encourage by premiums & provisions, the advancement of useful knowledge and discoveries"

"To authorize the Executive to procure and hold for the use of the U — S. landed property for the erection of Forts, Magazines, and other necessary buildings"

These propositions were referred to the Committee of detail which had prepared the Report and at the same time the following which were moved by Mr. Pinkney:[4] — in both cases unanimously.

"To fix and permanently establish the seat of Government of the U. S. in which they shall possess the exclusive right of soil & jurisdiction"

"To establish seminaries for the promotion of literature and the arts & sciences"

"To grant charters of incorporation"

"To grant patents for useful inventions"

"To secure to Authors exclusive rights for a certain time"

"To establish public institutions, rewards and immunities for the promotion of agriculture, commerce, trades and manufactures"

"That funds which shall be appropriated for the payment of public Creditors, shall not during the time of such appropriation, be diverted or applied to any other purpose— and that

[4] It is hardly possible that all of these could have been suggested by Pinckney alone. The last five would seem to have been suggested by Gerry, Rutledge and Mason, see below.

the Committee prepare a clause or clauses for restraining the Legislature of the U. S. from establishing a perpetual revenue"

"To secure the payment of the public debt"

"To secure all creditors under the New Constitution from a violation of the public faith when pledged by the authority of the Legislature"

"To grant letters of mark and reprisal"

"To regulate Stages on the post roads"⟩

Mr Mason introduced the subject of regulating the militia.[5] He thought such a power necessary to be given to the Genl. Government. He hoped there would be no standing army in time of peace, unless it might be for a few garrisons. The Militia ought therefore to be the more effectually prepared for the public defence. Thirteen States will never concur in any one system, if the displining of the Militia be left in their hands. If they will not give up the power over the whole, they probably will over a part as a select militia. He moved as an addition to the propositions just referred to the Committee of detail, & to be referred in like manner, "a power to regulate the militia".

Mr. Gerry remarked that some provision ought to be made in favor of public Securities,[6] and something inserted concerning letters of marque, which he thought not included in the power of war. He proposed that these subjects should also go to a Committee.

Mr. Rutlidge moved to refer a clause "that funds appropriated to public creditors should not be diverted to other purposes."

Mr. Mason was much attached to the principle, but was afraid such a letter might be dangerous in time of war. He suggested the necessity of preventing the danger of perpetual revenue which must of necessity subvert the liberty of any Country. If it be objected to on the principal of Mr. Rut-

[5] Upon this subject see August 21, August 22, and August 23 (with references under note 4.)

[6] Charges as to Gerry's motives in making this proposal, and Gerry's defense, will be found in Appendix A, CLVII, CLXII, CLXXV, CLXXXIX, CXCIX, see also August 25. On the subject of the indebtedness of the Confederation, see below August 21–24, and August 25 (with references under note 5.)